

DISSENTING OPINION BY M. PESSÔA.

[*Translation.*]

I have expressed my vote to the effect that the Court has no jurisdiction in this suit.

Article 26 of the Mandate for Palestine runs as follows :

“The Mandatory agrees that, if any dispute whatever should arise between the Mandatory and another Member of the League of Nations relating to the interpretation or the application of the provisions of the Mandate, such dispute, if it cannot be settled by negotiation, shall be submitted to the Permanent Court of International Justice provided for by Article 14 of the Covenant of the League of Nations.”

The Greek Government maintains that the Mavrommatis claim is a dispute relating to the interpretation and the application of Article 11 of the Mandate, and therefore falls within the jurisdiction of the Court.

But, in order that it shall be legitimate for the Court to deal with a question, it is not sufficient that it be one relating to the actual interpretation and the application of the Mandate ; it is further necessary, as follows from Article 26, that the dispute shall have arisen between two States and that it cannot be settled by diplomatic negotiations. Such diplomatic settlement may be shown to be impossible either by the nature of the dispute itself or by the failure of the negotiations.

These two conditions are also substantial. The first is closely related to the nature of the Court, to its particular duties and to its international mission. The Parties which may appear before the Court being States, it cannot be called upon to protect the rights of *individuals*, but only those of *States*. The other condition gives expression to the respect due to the sovereignty of nations. As being sovereign they have the fundamental right to settle their disputes between themselves, and the interposition of an outside authority is only understandable when the former solution cannot be arrived at.

Neither of these two conditions is fulfilled by the suit submitted to the Court.

Mavrommatis obtained from the Ottoman Government, between

1911 and 1914, certain concessions, and he maintains that, in 1921, the British Government as Mandatory in Palestine violated these. Mavrommatis protested, and from that moment onwards he discussed the question of his rights *personally and directly* with the British Government.

It was only on December 22nd, 1922, that the Greek Government intervened. But for what purpose did it intervene? To espouse the Mavrommatis claim and to negotiate for its settlement? By no means; it merely intervened for the purpose of forwarding to the Foreign Office a letter of Mavrommatis in which the latter, after giving the Greek Government a detailed statement of his claim, declared that he was inclined to appeal to the League of Nations.

Here is the proof of this:

"I am therefore obliged to appeal to the Tribunal of the League of Nations provided for by Article 311 and 312 of the Treaty together with the first paragraph of Article 287, and to pray to take the necessary steps to bring my case before the Competent Authority, so that, as soon as possible, consideration may be given to my request".

(Letter from the Greek Agent to the Registrar of the Court, dated May 26th.)

The Foreign Office replied that as the matter was in the hands of the Colonial Office, it would be much simpler and more speedy to deal direct with that Office:

"I understand that the Colonial Office are still in correspondence with this gentleman's solicitors in this matter.

"In the circumstances it appears to me quite unnecessary for this Department to intervene, as matters can be settled much more expeditiously and satisfactorily by means of direct discussion between the Colonial Office and M. Mavrommatis' solicitors, who are parties principally concerned and who possess first-hand knowledge of the points at issue." (*Ib.*, page 8.)

And that is all.

Up to this point then there had been no negotiations between the two States.

After this date two further steps were taken by the Greek Government.

The first was the letter of January 27th, 1923. But in this letter

Greece does not yet put forward its claim ; nor yet does it discuss the reasons alleged against this claims on behalf of Great Britain ; it merely asks the British Government what is its opinion with regard to the Mavrommatis claims :

“After these explanations I hope you will be able to kindly see your way to inform me *what is the view of His Majesty's Government on the matter*, and venture to hope that a *settlement* will be possible in the near future.” (Ib., page 8.)

The other step is constituted by the letter of January 26th, 1924. This time it might be expected that the Greek Government was going to state that it undertook the defence of its national, to set out his titles and to prove his rights ; to discuss the reasons put forward by the Colonial Office. Not so ; Greece still persists in asking the opinion of the British Government and informs it that Mavrommatis' solicitors (Mavrommatis' solicitors and not the Greek Government) suggest recourse to a Court of Arbitration :

“In these circumstances, *I should be grateful to you if you could see your way to letting me know the views of His Majesty's Government on the matter and whether, in their opinion, M. Mavrommatis' claim could not be satisfactorily met.*

“I have the honour to add *that M. Mavrommatis' solicitors suggested that he would be prepared to submit—should such a course be agreeable to His Majesty's Government—the examination of the matter to a Court of Arbitration.*” (Ib., page 10.)

Thus we have so far no dispute and no negotiations between States.

Let us go further.

Great Britain, on April 1st replied that its intention was to recognize M. Mavrommatis' rights as far as concerned the Jerusalem contract, but not the Jaffa or the Jordan concessions ; and it stated its reasons. It might be expected that once the Greek Government's curiosity was satisfied, the British Government's intention having been made known, Greece would also at length decide to state what she thought of the matter, to set forth her arguments in law and in equity and to refute those of her opponent. It is possible that in the face of these arguments the British Government would have decided either to abandon its own Case or at any rate to modify it.

How many times has it happened that for reasons of courtesy or other considerations one nation has made to another concessions which it would not make to a national of such other State !

Well, once again Greece said nothing as to her view of the Mavrommatis concessions ; nor did she formulate any claim on the subject ; she simply wrote a letter to the British Government announcing that she intended to sue that Government before the International Court of Justice !

Such are the facts. Having regard to them, can it be asserted that there was a *dispute* between Greece and Great Britain in regard to the Mavrommatis concessions, and that, for the purpose of settling it, negotiations took place between the two Governments ?

Negotiation consists of debate or discussion between the representatives of rival interests, discussion during which each puts forward his arguments and contests those of his opponent. Now, I ask to be shown a single document in which Greece stated its claim and put forward its arguments in support. There is not one. I ask to be told at least what these claims and what these reasons are. Nobody knows.

There is no doubt that International Law lays down no protocol or formulae for *negotiations* ; but in order that the existence of negotiations may be recognized, it naturally requires that they shall have taken place in some form or other. In the present case we have not before us any negotiations that have taken place in any form whatever. There is a complete absence of negotiations.

It must further be remarked that under Article 26 of the Mandate, the mere fact that negotiations have taken place between the two Governments does not suffice to bring a question within the jurisdiction of the Court ; it is further indispensable that either the conflict from its very nature cannot be settled by negotiation or else that negotiations shall have failed. The fact of requiring such negotiations is, as I have already stated, a tribute to the sovereignty of nations ; the principle is that all disputes shall be settled between the nations concerned themselves. The Court can only interpose its authority when such solution is recognized as impossible.

Now the dispute is clearly not one which cannot be settled through diplomatic channels ; and even if it be admitted that negotiations have taken place, where is to be found the proof that such a settlement has been found impossible ?

It is said that Great Britain, in her reply to the Greek Government, at once declared that her views on the matter were capable of no modification.

I beg to be excused if I state that this is not correct. Great Britain said that she recognized Mavrommatis' rights as far as concerned Jerusalem; that she was not prepared to recognize the Jaffa concession and that she denied the existence of the Jordan concession. The only claim which she definitely rejected was therefore the Jordan one; and even in this case she relied on the absence of a document; she would perhaps change her opinion if this document was presented to her:

"The Jerusalem concessions, as M. Mavrommatis' solicitors have been informed, are the only ones which His Majesty's Government are prepared to recognize, subject to the production of the original signed copies of the document and to their being found in order, since they alone arose out of an agreement entered into with the Ottoman Government before October 29th, 1914"

"The Jaffa concessions were signed at a date subsequent to October 29th, 1914, and, as M. Mavrommatis has already been informed, His Majesty's Government are not prepared to recognize that he possesses any right in respect of them"

"In regard to the third group, the Jordan concessions, no concessionary contract was actually completed or signed and M. Mavrommatis has already been informed that His Majesty's Government do not recognise that he has any rights in this area whatsoever."

(Ib., pp. 12—13.)

Where is the insurmountable opposition of Great Britain to be found?

In view of the facts which I have stated, it seems clear to me that the Mavrommatis affair is in no way a dispute between two States.

Greece is entitled to bring claims on behalf of its nationals, and that is in my opinion sufficient to give to the Mavrommatis claim an international character; but the truth is that Greece, *up to the time when it applied to the Court*, had not said what it thought or what it wanted as regards the Mavrommatis concessions; it had neither explained the nature of these concessions nor stated what were, in its opinion, their importance or their extent; it had further put forward no arguments in law to uphold them nor had it shown the weakness of the British opposition.

It follows, in the second place, from the facts stated that no negotiation took place between the two Governments in regard to these claims ; the Greek Government asked the British Government what were its views with regard to the Mavrommatis contracts ; the British Government stated how it envisaged each of the contracts ; the Greek Government made no reply.

The conclusion to be finally drawn from the facts stated is that the *impossibility* of settling the dispute through diplomatic channels has in no way been proved.

Under Article 26 of the Mandate, however, the Court has jurisdiction only when these conditions have simultaneously been fulfilled : if the dispute arises between States and if it cannot be settled by negotiation.

But these conditions are not fulfilled in the suit submitted to the Court by the Greek Government.

The Court has therefore no jurisdiction to hear and determine it.

(Signed) EPITACIO PESSÔA.
